

25LBCV02506 25LBCV02506

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-07-28

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Case Number: 25LBCV02506 Hearing Date: July 28, 2026 Dept: S27

Plaintiff, Rosario Ocampo filed

this action against Defendants, German and Rachel Castaneda for damages arising out of an automobile accident. The parties settled the action, and thereafter Plaintiff filed an amended complaint naming Allison Roa, a minor by and through her GAL, Rosario Ocampo, as an additional plaintiff in the action.

Thereafter, the Court approved a petition for Ocampo to act as Roa's GAL.

Because Roa is a minor, the parties seek approval of the settlement. Roa suffered injuries to her back, shoulder, and neck in the accident and was treated in the emergency room and received physical therapy. She has completely recovered from her injuries.

The settlement is in the total amount of \$63,500, with Roa receiving \$13,500 and Ocampo receiving \$50,000. If the settlement is approved, \$1676.27 will be used for medical expenses, \$3375 for attorneys' fees, and \$81.25 for costs of suit. The net balance of \$8367.48 will be placed in a blocked account.

Pursuant to CRC 7.952, Plaintiff and Petitioner must appear at the hearing and testify to the satisfaction of the Court before the Court grants the petition. Plaintiff is twelve years old, and therefore the Court will require her to appear and testify prior to granting the petition.

The Court cannot locate required

Attachment 11b(6), which is required to state the reasons for the apportionment of the settlement between the minor and the adult plaintiff.

Additionally, the Court has a

proposed order to approve the settlement and an acknowledgement of receipt of order and funds for deposit in blocked account, but cannot locate form MC-355, the proposed order to place funds in a blocked account. Petitioner must provide this proposed order for processing at the time of the hearing.

Finally, the Court cannot locate

proof of service of the petition and related papers on Defendants.

If the Court is satisfied with the

testimony of the parties re: apportionment of the settlement proceeds, if the Court receives the required form MC-355, and if the Court is satisfied that Defendants have been served with the petition and related papers, the Court will grant the petition and process the orders at the conclusion of the hearing.

The parties are reminded that there is an OSC re:

dismissal (settlement) on calendar concurrently with the hearing on the petition. The Court asks the parties to make arrangements to appear remotely at the OSC and hearing on the petition.